

TX-25-01777

SUIT NO. _____

DALLAS COUNTY, ET AL	§	IN THE DISTRICT COURT
	§	134th
VS.	§	_____ JUDICIAL DISTRICT
	§	
BENNY J. STEWART	§	DALLAS COUNTY, TEXAS

ORIGINAL PETITION

TO THE HONORABLE JUDGE OF SAID COURT:

I.

PLAINTIFF(S)

This suit is brought under TEXAS PROPERTY TAX CODE § 33.41 by the following named Plaintiff(s), whether one or more, each of which is a taxing unit and legally constituted and authorized to impose and collect taxes on property:

**DALLAS COUNTY, PARKLAND HOSPITAL DISTRICT, DALLAS COLLEGE,
DALLAS INDEPENDENT SCHOOL DISTRICT AND CITY OF DALLAS**

The Plaintiff(s) intends discovery to be conducted under Level 2 of Rule 190, Texas Rules of Civil Procedure.

DEFENDANT(S)

The following are named as Defendant(s) in this suit and may be served with notice of these claims by service of citation at the address and in the manner shown as follows:

Benny J. Stewart, 3525 Packard St., Dallas, TX 75215;

if unknown, whose location is unknown, and such person's unknown heirs, successors and assigns, whose identity and location are unknown, unknown owners, such unknown owner's heirs, successors and assigns, and any and all other persons, including adverse claimants, owning or having or claiming any legal or equitable interest in or lien upon the property which is the subject of the delinquent tax claim in this case.

The following taxing unit(s), whether one or more, is joined as a party herein as required by TEXAS PROPERTY TAX CODE § 33.44(a) because it may have a claim for delinquent taxes against all or part of the same property described below: **NONE**. The foregoing named taxing unit(s), if any, is invited to add its claim by intervening herein.

II.

Claims for all taxes becoming delinquent on said property at any time subsequent to the filing of this suit, up to the day of judgment, including all penalties, interest, attorney's fees, and costs on same, are incorporated in this suit, and Plaintiff(s) is entitled to recover the same, upon proper proof, without further citation or notice. Plaintiff(s) is further entitled to recover each

penalty that is incurred and all interest that accrues on all delinquent taxes imposed on the property from the date of judgment to the date of sale.

III.

As to each separately described property shown in "Exhibit A", there are delinquent taxes, penalties, interest, attorney's fees, and costs justly due, owing and unpaid to Plaintiff(s) for the tax years and in the amounts shown therein, said exhibit being attached hereto and made a part hereof by reference for all purposes.

IV.

All of the taxes were authorized by law and legally imposed in the county in which this suit is brought. The taxes were imposed in the amount(s) stated in "Exhibit A" on each separately described property for each year specified and on each person named, if known, who owned the property on January 1 of the year for which the tax was imposed. Plaintiff(s) now has and asserts a lien on each property described herein to secure the payment of all taxes, penalties, interest, attorney's fees, and costs due. Plaintiff(s) affirmatively avers that all things required by law to be done have been done properly by the appropriate officials and all conditions precedent have been met.

V.

All of the property described in "Exhibit A" was, at the time the taxes were assessed, located within the territorial boundaries of each taxing unit in whose behalf this suit is brought. All Defendants named in this suit either owned the property that is the subject of this suit on January 1 of the year in which taxes were imposed on said property, or owned or claimed an interest in said property at the time of the filing of this suit.

VI.

The Law Firm represented by the attorney whose name is signed hereto is legally authorized and empowered to institute and prosecute this action on behalf of Plaintiff(s). Plaintiff(s) should recover attorney's fees as provided by law for the prosecution of this case, and such attorney's fees should be taxed as costs.

VII.

Plaintiff(s) may have incurred certain expenses in procuring data and information as to the name, identity and location of necessary parties, and in procuring necessary legal descriptions of the property that is the subject of this suit. Said expenses, if incurred, are reasonable and are shown in "Exhibit A" as abstractor's costs, which expenses should be taxed as costs herein.

PRAYER

WHEREFORE, PREMISES CONSIDERED, Plaintiff(s) requests that citation be issued and served upon each Defendant named herein, commanding them to appear and answer herein in the time and manner required by law. Plaintiff(s) further prays, upon final hearing in this cause, for foreclosure of the tax lien on the specific property of the defendants described herein, securing the total amount of all delinquent taxes, penalties and interest, including taxes, penalties and interest becoming delinquent during the pendency of this suit, costs of court, attorney's fees,

abstract fees, and expenses of foreclosure sale. Plaintiff(s) further prays for personal judgment against Defendant(s) who owned the property on January 1 of the year for which the taxes were imposed for all taxes, penalties, interest, and costs that are due or will become due on the property, together with attorney's fees and abstractor's fees. Plaintiff(s) further prays for: (1) the appropriate order of sale requiring the foreclosed property to be sold, free and clear of any right, title, or interest owned or held by any named Defendant, at public auction in the manner prescribed by law, and (2) writs of execution, directing the sheriffs and constables for the State of Texas, to search out, seize, and sell sufficient property of the Defendant(s) against whom personal judgment may be awarded to satisfy the lawful judgment sought herein. Finally, Plaintiff(s) prays for such other and further relief, at law or in equity, to which it may show itself justly entitled.

Respectfully submitted,
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EXHIBIT "A"

00000496024000000

STEWART BENNY J
3523 PACKARD ST
DALLAS, TX 75215

BRETTON WOODS BLK G/6041 LT 11
INT201700198338 DD07122017 CO-DC
6041 00G 01100 2006041 00G

2822 Larkspur Ln., Dallas, TX 75233-3218

LEGAL DESCRIPTION OF PROPERTY: ALL OF GRANTOR'S 1/2 INTEREST ON LOT 11, BLOCK G/6041, BRETTON WOODS, AN ADDITION IN THE CITY OF DALLAS, DALLAS COUNTY, TEXAS, AS SHOWN BY THE GENERAL WARRANTY DEED RECORDED AS INSTRUMENT NUMBER 201700198338 OF THE DEED RECORDS OF DALLAS COUNTY, TEXAS AND MORE COMMONLY ADDRESSED AS 2822 LARKSPUR LANE, THE CITY OF DALLAS, DALLAS COUNTY, TEXAS.

ABTRACTOR'S FEE: \$350.00 (TexSearch, Inc. - "TEXS")

DELINQUENT TAX STATEMENT

DALLAS COUNTY

ACCT. NO. 00000496024000000

YEAR	TAX AMT	P & I	TOTAL
2023	\$301.08	\$179.45	\$480.53
2024	\$651.59	\$294.51	\$946.10
TOTAL	\$952.67	\$473.96	\$1,426.63

PARKLAND HOSPITAL DISTRICT

ACCT. NO. 00000496024000000

YEAR	TAX AMT	P & I	TOTAL
2023	\$306.36	\$182.59	\$488.95
2024	\$641.00	\$289.73	\$930.73
TOTAL	\$947.36	\$472.32	\$1,419.68

DALLAS COLLEGE

ACCT. NO. 00000496024000000

YEAR	TAX AMT	P & I	TOTAL
2023	\$153.56	\$91.52	\$245.08
2024	\$319.28	\$144.32	\$463.60
TOTAL	\$472.84	\$235.84	\$708.68

DALLAS INDEPENDENT SCHOOL DISTRICT

ACCT. NO. 00000496024000000

YEAR	TAX AMT	P & I	TOTAL
2023	\$1,415.07	\$843.38	\$2,258.45
2024	\$3,015.24	\$1,362.89	\$4,378.13

TOTAL	\$4,430.31	\$2,206.27	\$6,636.58
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CITY OF DALLAS

ACCT. NO. 00000496024000000

	YEAR	TAX AMT	P & I	TOTAL
	2023	\$1,026.87	\$612.02	\$1,638.89
	2024	\$2,130.73	\$963.09	\$3,093.82
TOTAL		\$3,157.60	\$1,575.11	\$4,732.71
TOTAL DUE AS OF OCTOBER, 2025				
TOTAL		\$9,960.78	\$4,963.50	\$14,924.28

This suit covers all delinquent taxes owed on this property, whether or not itemized herein for all years. Penalty and interest continue to accrue monthly at lawful rates.

THE ABOVE AMOUNTS DO NOT INCLUDE ANY FEES DUE THE DISTRICT CLERK OF THE COUNTY WHERE THIS SUIT IS FILED. TEXAS LAW MAKES YOU RESPONSIBLE FOR PAYMENT OF THESE FEES. PLEASE CONTACT THE LAW FIRM FOR THE AMOUNT DUE. THESE FEES MUST BE PAID BEFORE THE SUIT WILL BE DISMISSED. PAYMENT OF COURT COSTS MUST BE IN THE FORM OF A CASHIERS CHECK OR MONEY ORDER.